

Court pauses Big Bend border projects while legal challenge continues

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A federal judge in Texas has temporarily blocked the Trump administration from building a border wall and related **infrastructure** across the Big Bend region. The ruling includes Big Bend National Park and a much larger stretch of the border with Mexico.

Judge Kathleen Cardone's Friday decision covers the roughly 500-mile Big Bend sector, about a quarter of the southern border with Mexico. The projects are part of a \$46 billion administration effort involving steel walls, vehicle barriers, roads and **surveillance** technology.

The court order is a temporary **injunction**: in this case, a direction to stop construction while the legal dispute proceeds. Cardone said the people bringing the lawsuit were likely to succeed on at least one claim and could face serious harm that could not easily be undone without a pause. Her ruling does not settle the whole case.

An environmental organization, advocates for a historic church in Ruidosa and a river guide brought the lawsuit. They argue that the Department of Homeland Security acted wrongly by using **waivers** to bypass rules protecting the environment, culture and archaeology. A **waiver** sets aside a requirement that would otherwise apply.

Landowners, businesses and environmentalists have joined opposition to the projects. Critics say the region's remote location and **rugged** landscape already discourage unauthorized border crossings. Opposition to construction in the national park has included both Republicans and Democrats.

After bulldozers cleared land inside the park in August, Customs and Border Protection paused work there. That earlier pause expired on September 30. The administration says it is **reevaluating** its plans for the park, but has not announced what it will do.

The court's new ruling also covers areas upriver and downriver, where projects would largely cross private land. The government has sought landowners' permission to survey and build there.

Customs and Border Protection and the Department of Homeland Security did not immediately respond to requests for comment. Park advocates welcomed the ruling and urged officials to repair existing damage, meet local residents and develop alternative plans. For now, construction is paused while the legal challenge continues.

Word Treasure

infrastructure -- Built structures and systems, such as roads and barriers.

injunction -- A court order requiring an action to stop or be taken.

waiver -- Permission to set aside a requirement that would otherwise apply.

surveillance -- Watching or monitoring places or activities.

rugged -- Rough and difficult to travel across.

reevaluating -- Examining something again before deciding what to do.

Background you need

A waiver sets aside a requirement that would otherwise apply.

The temporary injunction pauses construction while the dispute continues; it does not settle the whole case.

Break it down

Introduces the ruling and the area it covers.

Places the projects within the wider border construction effort.

Explains the injunction and the judge's reasoning.

Describes the lawsuit's challenge to protective-rule waivers.

Reports opposition, the earlier park pause and the administration's review.

Explains effects on private land and ends with advocates' requests.

Why it matters

The decision affects a national park and projects planned largely across private land nearby. It also raises a legal question about bypassing environmental and cultural protections.

Test what you remember

1. How much of the southern border does the Big Bend sector account for?

- ☐ (A) About one half
- ☐ (B) About three quarters
- ☐ (C) About one tenth
- ☐ (D) About one quarter

2. What does the temporary injunction do in this case?

- ☐ (A) Stops construction while the legal dispute proceeds
- ☐ (B) Ends the lawsuit while land surveys continue
- ☐ (C) Transfers park ownership while negotiations continue
- ☐ (D) Approves construction while officials review plans

3. What did Judge Cardone say about the lawsuit?

- ☐ (A) The plaintiffs could proceed only after construction was complete.
- ☐ (B) The plaintiffs had already succeeded on every disputed claim.
- ☐ (C) The plaintiffs needed to withdraw all their disputed claims.
- ☐ (D) The plaintiffs were likely to succeed on at least one claim.

4. What government action does the lawsuit challenge?

- ☐ (A) Using permits to expand guided park visits
- ☐ (B) Using waivers to bypass protective rules
- ☐ (C) Using surveys to change the river's name
- ☐ (D) Using contracts to repair a historic church

5. What do critics say already discourages unauthorized border crossings?

- ☐ (A) The region's busy roads and large towns
- ☐ (B) The region's church buildings and park tours
- ☐ (C) The region's remote location and rugged landscape
- ☐ (D) The region's bright lights and shopping centers

6. When did the earlier pause on work inside the park expire?

- ☐ (A) On September 15
- ☐ (B) On October 15
- ☐ (C) On August 30
- ☐ (D) On September 30

Answer key (try the quiz first!): 1: D 2: A 3: D 4: B 5: C 6: D

Questions to think about

1. Judge Kathleen Cardone: She said the plaintiffs were likely to succeed on at least one claim and could suffer serious, irreparable harm without an injunction.
2. Tiernan Sittenfeld: She called for officials to repair damage in Big Bend, meet border communities and find alternative solutions.

MY THOUGHTS (at least 20 words):